

CV 17 - 7070

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
SHABAZZ FREDERICKS,

Plaintiffs,

-against-

THE CITY OF NEW YORK;
NEW YORK CITY POLICE OFFICER SEAN
COLLINS, POLICE OFFICER WHITEHEAD,
and JOHN AND JANE DOE POLICE OFFICERS
1-8,

Defendants.
-----X

INDEX NO.:

BRODIE, J.

MANN. M.J.

PLAINTIFF DEMANDS TRIAL
BY JURY

FILED
CLERK
2017 DEC -5 PM 12:09
U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

Shabazz Fredericks (hereinafter "plaintiff" unless otherwise specified), by his attorney, Harold C. Baker, Esq., complaining of the defendants herein, respectfully shows to this Court, and alleges as follows:

PRELIMINARY STATEMENT

1. This is an action for monetary damages (compensatory and punitive) against The City of New York, (hereinafter "City of New York"), New York City Police Officers Sean Collins and Officer Whitehead and John and Jane Doe New York City Police Officers 1-8, whose identities are presently unknown hereinafter "police officer defendants," who are police officers and employees of the New York City Police Department, (hereinafter "the NYPD"), and/or supervisors who participated in the wrongful seizure, arrest, detention and malicious prosecution of plaintiff, arising out of the false arrest, assault, battery, filing of false reports regarding, and

false imprisonment and malicious prosecution of plaintiff and arising out of the defendants' failure to intervene and prevent the wrongful and false seizure, arrest and malicious prosecution of plaintiff.

2. It is alleged that on July 13, 2016, at approximately 6:30 a.m., the police officer defendants, employees of the City of New York, individually and as supervisory employee(s) of the NYPD, and as agents, servants and/or employees of the NYPD, acting in concert, under color of state laws, intentionally and willfully subjected plaintiff to, inter alia, wrongful and unlawful entry into 363 Wortman Avenue, Apt. 3D, Brooklyn, NY 11207, wrongful and false arrest, false imprisonment, detention, assault, battery, and the filing of false reports against plaintiffs and instituted a malicious prosecution of plaintiff for acts of which plaintiff was innocent and the failure to intervene and stop the wrongful and false arrest of and the malicious prosecution of plaintiff. Defendants caused a Criminal Court Complaint to be filed against plaintiff in Kings County Criminal Court and caused plaintiff to have to consult with an attorney and fight the charges in court. The case was dismissed in part AP1 of Kings County Criminal Court on December 8, 2016.

THE PARTIES

3. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, in the City and State of New York. Plaintiff resides at 363 Wortman Avenue, apt. 3D, Brooklyn, NY 11207.

4. At all times relevant and material herein, the defendant City of New York was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.

5. At all times relevant and material herein, the police officer defendants were employees of the New York City Police Department of the City of New York.

6. At all times relevant and material herein, the police officer defendants were personnel of the NYPD and of defendant City of New York.

JURISDICTION AND VENUE

7. This action is brought pursuant to 42 U.S.C. §§1983 and 1988 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of The United States.

8. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §§1331 and 1343 in that it alleges a claims for relief arising under 42 U.S.C. § 1983. Additionally, the Court has supplemental jurisdiction of the state and common law claims asserted herein pursuant to 28 U.S.C. §1367.

9. Venue is proper pursuant 28 U.S.C. §1391 because a substantial part of the events or omissions giving rise to the claim occurred in this district and, or in the alternative, the defendant City of New York is subject to personal jurisdiction in this district.

NOTICE OF CLAIM

10. Within 90 days following the unlawful arrest of plaintiff arising from this incident, plaintiff filed written Notice of Claim with Defendant City of New York. This matter has not been settled or otherwise disposed of.

11. With regard to plaintiff, a Notice of Claim for false arrest, false imprisonment, battery, assault, malicious prosecution, violation of civil rights and related claims against the City of New York and the defendant police officers was filed on January 24, 2017. A hearing pursuant to GML 50-H was conducted on March 1, 2017.

FACTUAL ALLEGATIONS PERTAINING TO PLAINTIFFS' CLAIMS

12. Defendant City of New York was at all times relevant hereto, a municipal corporation, and a subdivision of the State of New York, organized and existing pursuant to the Constitution and the laws of the State of New York.

13. At all times relevant and material herein, the defendant City of New York operated, maintained, managed, supervised and controlled a police department, known as the NYPD, as part of and in conjunction with its municipal functions.

14. The NYPD was at all times relevant hereto, a subdivision, department or agency of defendant City of New York.

15. The police officer defendants were, at all times relevant hereto, employees of the NYPD, duly appointed and acting as police officers in the NYPD and were agents, servants and/or employees of the NYPD, acting in the course and scope of their employment as such and in furtherance of the interests and business of their said employer.

16. Upon information and belief, the police officer defendants were graduates of the Police Academy of the City of New York.

17. At all times relevant hereto, the defendant City of New York had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, the police officer defendants, to conform their conduct to a standard for the protection of individuals, such as plaintiffs, against the unreasonable risk of harm by conducting themselves in such a manner so as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiffs herein.

18. In addition, at all times relevant hereto, defendant City of New York had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels the defendant officers, the police officer defendants in the protections of the rights of plaintiffs under the Constitution and the Bill of Rights.

19. At all times mentioned herein, the individual defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of defendant and the State of New York.

20. At all times mentioned herein, the defendants' acts constituted state action.

21. On July 13, 2016, the police officer defendants, and other officers of the NYPD were on duty and/or acting as employees, agents or servants of defendant City of New York, and were also present at the same time and in the same place as plaintiff.

22. On July 13, 2016 at approximately 6:30 a.m., the police officer defendants, members of the NYPD, forcibly entered 363 Wortman Avenue, Apartment 3D, Brooklyn, NY 11207, plaintiff's grandmother's residence screamed and cursed at plaintiff, pointed firearms at plaintiff, threatened plaintiff, forced plaintiff at gunpoint to lie on the floor of the apartment, assaulted plaintiff by aggressively poked the barrel of a firearm into plaintiff, illegally strip searched plaintiff, and illegally searched plaintiff's grandmother's apartment wherein plaintiff resided by ransacking it, handcuffed plaintiff, interrogated plaintiff, threatened to put plaintiff's grandmother in jail and that plaintiff would go to jail and never be released if plaintiff did not provide information to defendants and attempted to coerce plaintiff to become an informant and in so doing caused physical, mental and emotional injury to plaintiff and damaged personal belongings of the plaintiff.

23. At the time of the illegal forcible entry into 363 Wortman Avenue, Apt. 3D, Brooklyn, NY 11207 by the defendants, plaintiff was not engaged in any criminal behavior.

24. After holding plaintiff in handcuffs in a stress position for a period of time and ransacking the apartment, the defendant police officers forcibly transported plaintiff to a police precinct where plaintiff was strip searched again, fingerprinted, photographed, and placed in a cell and held against his will for hours. The defendant police officers then transported plaintiff to Central Booking where plaintiff was held in a cell for an additional period of hours.

25. Defendant police officers and their supervisors caused a false and fraudulent criminal court complaint to be filed against plaintiff which contained false and malicious allegations. Thereafter plaintiff was forced to consult an attorney, was arraigned before a Criminal Court Judge and released on his own recognizance.

26. Plaintiff was forced to continue to consult with an attorney and to appear in Court until the case was dismissed by the District Attorney's Office on December 8, 2016 in AP1.

27. All of the above actions were committed by the defendants against plaintiff despite the fact that plaintiff had committed no crime and without just, reasonable, lawful or proper cause to seize, arrest, search, detain and prosecute plaintiff.

28. At no time herein did any plaintiff ever act in an unlawful or disorderly fashion. At no time did plaintiff act in any way, fashion or manner which justified the use of force in pointing firearms at plaintiffs, poking plaintiff with the barrel of a gun, forcing plaintiff to the floor of the apartment, holding plaintiff at gunpoint, strip searching plaintiff and thereafter handcuffing, arresting, jailing and maliciously prosecuting plaintiff.

29. Plaintiff suffered bruising and swelling to his body and knees, soreness and redness to his wrists, severe emotional and physical trauma and humiliation as a result of the

unjustified assault on him, strip search, unlawful detention and malicious prosecution. He will be required to receive medical treatment and psychological support for his trauma. This has caused him to be damaged in the sum of One Million dollars (\$1,000,000.00).

30. Upon information and belief, the police officer defendants, and other officers, employees of the NYPD, wrongfully and improperly entered 363 Wortman Avenue, Apartment 3D, Brooklyn, NY stopped, detained and arrested plaintiff in violation of the fourth amendment of the Constitution, when, in fact, plaintiff had committed no crime.

31. Upon information and belief, the police officer defendants, and other officers, employees of the NYPD, with deliberate disregard for proper, lawful, appropriate, correct, and effective investigative behaviors and procedures, stopped, detained, searched, arrested and maliciously prosecuted plaintiff when it was not right, just, lawful, proper, or necessary to do so.

32. On July 13, 2016, employees of the NYPD, including the police officer defendants, and other officers, and their supervisors, acting in concert, maliciously and with intent to injure plaintiff, and without just cause or any right to do so, pointed fire arms at plaintiff, forced plaintiffs to lie on the floor of the location, handcuffed plaintiffs, poked plaintiff with the barrel of a gun, strip searched plaintiff, forcibly removed him from the location, transported him in handcuffs to a police precinct, and then to Central Booking and jailed and detained them there and restrained them of their liberty, against the will of the plaintiff and thereafter instituted a malicious prosecution of plaintiff.

33. The arrest of the plaintiff by the individual police officer defendants was perpetrated by the individual defendants without a warrant or other legal process and without probable cause.

34. Defendants acted maliciously and intentionally.

35. Plaintiff was thereupon and thereafter detained and restrained of his liberty and freedom, without his consent, on account of the unlawful and wrongful acts of the defendants, and were confined in various facilities of the NYPD, and defendant City of New York, including a the 75th precinct, Central Booking and others.

36. At the time of their unlawful seizure, plaintiff was lawfully in his grandmother's home, not violating any laws, nor committing any crime.

37. The arrest charges against plaintiff was disposed of, in his favor, as the case was dismissed and all charges dropped on December 8, 2016 in part AP1 of Kings County Criminal Court.

38. As a direct and proximate result of the acts of the defendants, plaintiffs suffered severe and permanent damages including, but not limited to:

Violation of their constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of their persons;

Physical injury, embarrassment, humiliation, loss of liberty, loss of income, loss of employment, emotional distress and mental anguish.

39. The actions of the individual defendants violated the following clearly established and well settled federal constitutional rights of plaintiffs, including but not limited to:

Freedom from the unreasonable seizure of their persons and freedom from the use of excessive, unreasonable and unjustified force against a person.

FIRST COUNT
(42 U.S.C. SECTIONS 1983 and 1985 AGAINST INDIVIDUAL DEFENDANTS)

40. Plaintiff re-alleges paragraphs 1 through 40 and they are incorporated herein by reference hereinafter.

41. Defendants, acting in concert and under the color of state law, deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of *such rights* and are liable to plaintiff under 42 U.S.C. Sections 1981, 1983 and 1985.

42. As a result thereof, plaintiff claims damages for the injuries set forth above.

SECOND COUNT
**(PURSUANT TO 42 U.S.C. § 1983 ASSAULT AND BATTERY UNDER COLOR OF
STATE LAW AGAINST INDIVIDUAL DEFENDANTS)**

43. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

44. Upon approaching plaintiff, rousing him from their sleep, forcing him at gunpoint to lie on the floor, handcuffing and arresting him, the police officer defendants, acting in concert, made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching by, among other things, poking plaintiff with the barrel of a firearm.

45. The defendants' assault and battery of plaintiffs was excessive, unwarranted, unnecessary and violent and violated plaintiff's rights under the Constitution.

46. The said assault and battery caused plaintiffs' personal injury and damage, both physical and mental; and severe emotional distress and illness.

47. As a result thereof, plaintiffs claim damages for the injuries set forth above.

THIRD COUNT
**(PURSUANT TO 42 U.S.C §1983 FOR FALSE ARREST AND IMPRISONMENT
UNDER COLOR OF STATE LAW)**

48. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

49. The defendants arrested, detained and imprisoned plaintiff without warrant or probable cause, even though they knew or should have known that plaintiff was wholly innocent of any crime then and there alleged against him, and thus violated plaintiff's Constitutional rights.

50. As a result thereof, plaintiff claims damages for the injuries set forth above.

FOURTH COUNT
(COMMON LAW ASSAULT)

51. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

52. The defendants are liable for assault to plaintiff.

53. As a result thereof, plaintiff claims damages for the injuries set forth above.

FIFTH COUNT
(COMMON LAW BATTERY)

54. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

55. The defendants are liable for battery to plaintiff.

56. As a result thereof, plaintiff claims damages for the injuries set forth above.

SIXTH COUNT
**(COMMON LAW FALSE ARREST
AND IMPRISONMENT)**

57. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

58. The defendants are liable for false arrest and false imprisonment to plaintiff.

59. As a result thereof, plaintiff claim damages for the injuries set forth above.

SEVENTH COUNT
**(COMMON LAW INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS)**

60. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

61. The defendants' conduct, in assaulting, battering and falsely seizing, detaining, arresting and imprisoning plaintiff was outrageous, shocking and exceeded all reasonable bounds of decency.

62. The defendants are liable for intentional infliction of emotional distress to plaintiff.

63. As a result thereof, plaintiff claims damages for the injuries set forth above.

EIGHTH COUNT
**(NEGLIGENT INFILCTION OF
EMOTIONAL DISTRESS)**

64. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

65. The defendants' conduct, in assaulting, battering and falsely seizing, detaining, arresting and imprisoning plaintiff was careless and negligent as to the emotional health of plaintiff.

66. The defendants are liable for negligent infliction of emotional distress to plaintiff.

67. As a result thereof, plaintiff claims damages for the injuries set forth above.

NINTH COUNT
(COMMON LAW NEGLIGENCE)

68. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

69. The defendant City of New York was negligent in its operation, management, supervision and control of its police department; in its training; in its conduct, at the aforesaid location; in its employees in assaulting, battering and falsely arresting and imprisoning plaintiff.

70. Additionally, the defendants City of New York, and the police officer defendants were negligent in their conduct, in causing, or allowing, the occurrence as aforesaid.

71. As a result thereof, plaintiff claims damages for the injuries set forth above.

TENTH COUNT
(FAILURE TO INTERVENE)

72. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

73. The defendants are liable to plaintiff for failing to intervene and stop the wrongful and unlawful entry into; and search of, 363 Wortman Avenue, Apartment 3D Brooklyn, NY, and for failing to intervene and stop the wrongful and unlawful assault, battery, seizure, detention and arrest of plaintiff.

74. Additionally, the defendants City of New York, and the police officer defendants were negligent in their conduct, in causing, or allowing, the occurrence as aforesaid.

75. As a result thereof, plaintiff claims damages for the injuries set forth above.

JURY DEMAND

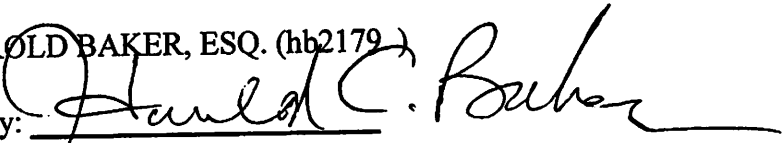
76. Plaintiff demands a trial by jury.

WHEREFORE, plaintiff, demands judgment against the defendants, jointly and severally for compensatory damages on each Cause of Action in the amount of One Million (\$1,000,000.00) Dollars; for punitive damages on each Cause of Action; awarding plaintiff reasonable attorney's fees, costs and disbursements of this action; and granting such other and further relief as this Court deems just and proper.

DATED: Brooklyn, New York
November 20, 2017

Yours,

HAROLD BAKER, ESQ. (hb2179)

By: 

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